

25SMCV05874 25SMCV05874

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE

RULING

DEPARTMENT

207

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MOTION

Motion

to Serve Cross-Complaint by Publication

MOVING PARTY

Defendant

and Cross-Complainant Peninsula Escrow, Inc.

OPPOSING PARTY

none

MOTION

This lawsuit arises from a dispute over real property.

On November 7, 2025, Plaintiff Dorothea Schiro ("Plaintiff") filed suit against Defendants Commonwealth Land Title Insurance Company ("Commonwealth"); Peninsula Escrow, Inc. ("Peninsula"); Giancarlo Marcaccini ("Marcaccini"); and Nourmand and Associates ("Nourmand") (together, "Defendants") alleging six causes of action for (1) quiet title/declaratory relief; (2) constructive trust and accounting; (3) conversion; (4) negligence/negligent misrepresentation; and (6) fraud and aiding & abetting.

On January 30, 2026, Peninsula cross-complained in interpleader against Cross-Defendants Ocean Towers Housing Corp. ("Ocean Towers"); John Spahi, individually and as trustee of the John Spahi Family Trust Dated August 1, 2012 ("Spahi"); Gelato Trust (2015) ("Gelato"); and Dorothea Schiro ("Schiro") (together, "Cross-Defendants").

Peninsula now moves to serve Ocean Towers and Spahi by publication. The motion is unopposed. Notwithstanding, the Court notes that a noticed hearing on an Application for Publication is unnecessary. (See *Rios v. Singh* (2021) 65 Cal.App.5th 871, 883 ["an application for an order of publication of the summons may be made at an ex parte hearing"].)

LEGAL

STANDARD

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439–1440.) "In order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures. (*Zirbes*

v. Stratton (1986) 187 Cal.App.3d 1407, 1417, quoting Stamps v. Superior Court (1971) 14 Cal.App.3d 108, 110.)

For service on persons within California, generally, service of summons and complaint must be done by personal service. (Code Civ. Proc., § 415.10.) However, “[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served,” a plaintiff may serve an individual defendant “by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . , in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address . . . , at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (b).)

A state may also exercise jurisdiction over an individual who consents to such jurisdiction. (Nobel Floral, Inc. v. Pasero (2003) 106 Cal.App.4th 654, 658.) “Express consent to a court's jurisdiction will occur by generally appearing in an action or by a valid forum-selection clause designating a particular forum for dispute resolution regardless of residence.” (Ibid. [cleaned up].) “Consent to a court's jurisdiction may also be implied by conduct.” (Ibid.) For example, a nonresident plaintiff who commences an action thereby submits to that court's personal jurisdiction on any cross-complaint filed against him by the defendant.” (Ibid.) “Similarly, a nonresident plaintiff who has filed a suit in California against particular parties has consented to jurisdiction in California when these same parties later sue him in a related action.” (Sea Foods Co., Ltd. v. O.M. Foods Co., Ltd. (2007) 150 Cal.App.4th 769, 786, as modified (May 23, 2007).) “By choosing a particular forum, [the] plaintiff is considered to have voluntarily submitted to the court's jurisdiction ‘for all purposes for which justice to the defendant requires his presence.’” (Ibid.)

A summons may also be served within the state by mailing the summons and complaint with a notice and

acknowledgment of receipt and a return envelope, postage prepaid, addressed to the sender. (Code Civ. Proc., § 415.30, subd. (a).) Such service is deemed complete on the date the written acknowledgement of receipt of summons is executed, if such acknowledgment is thereafter returned to the sender. (Code Civ. Proc., § 415.30, subd. (c).) If the person to whom the summons, complaint, and notice are mailed fails to complete and return the acknowledgement within 20 days, that person shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve them by another method. (Code Civ. Proc., § 415.30, subd. (d).)

Failing all that, “[a] summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article[.]” (Code Civ. Proc., § 415.50, subd. (a).) But “[i]f a defendant’s address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort.” (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.)

Finally, “if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.” (Code Civ. Proc., § 413.30, subd. (a)(1).) “A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.

ANALYSIS

Peninsula seeks to serve Cross-Defendants Ocean Towers and Spahi by publication.

Concerning Ocean Towers, the Court finds the motion to be procedurally defective. A party may not serve the summons and complaint on a corporation or limited liability company by publication. (See Code Civ. Proc., § 416.10; Corp. Code, § 17701.16; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶¶ 4:135 et seq., pp. 21 et seq.)

Concerning Spahi, Peninsula advances Declarations of Diligence, which provide as follows: After 3 attempts, the process server obtained access to Spahi's residential apartment where a female occupant who refused to open the door told the process server that Spahi was not home. (Ex. B to Latman Decl.)

But the Court does not find Peninsula has exhausted all reasonably diligent efforts to serve Cross-Defendant Spahi. As a threshold matter, there is no evidence that Peninsula attempted to serve Spahi by mail at Spahi's last known address with a notice and acknowledgment of receipt. Further, the response from the female occupant of Spahi's residence suggests that that address is current, yet there is no evidence that Peninsula attempted to serve him by mail at that address.

CONCLUSION AND ORDER

For the reasons stated, the Court denies Peninsula's motion to serve Cross-Defendants Ocean Towers Housing Corp. and John Spahi by publication.

Peninsula shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

July 7, 2026 _____/s/ _____

Michael E. Whitaker

Judge
of the Superior Court